

Master Services Agreement

between Brightwave Labs Ltd. ("Provider") and Acme Corp ("Customer") · Effective 1 July 2026

1. Services

1.1 Provider grants Customer access to the Brightwave Insights analytics platform on the Enterprise plan for up to 150 named users, as described in Order Form #2026-0412.

1.2 Provider will deliver onboarding services during the first 90 days, including connector setup and two training sessions.

2. Fees and Payment

2.1 Customer shall pay an annual fee of USD 162,000, invoiced annually in advance.

2.2 Invoices are due within 30 days of the invoice date. Late payments accrue interest at 1% per month.

2.3 Fees are non-refundable except as expressly stated in Section 8.4.

3. Term and Renewal

3.1 The initial term is twelve (12) months from the Effective Date.

3.2 The Agreement renews automatically for successive twelve-month terms unless either party gives written notice of non-renewal at least sixty (60) days before the end of the current term.

4. Service Levels

4.1 Provider commits to 99.95% monthly uptime. Service credits are the Customer's sole remedy for missed uptime, as set out in the SLA.

5. Data Protection

5.1 Customer data is hosted in the EU region (Frankfurt). Provider acts as processor under the Data Processing Addendum attached as Exhibit B.

6. Confidentiality

6.1 Each party shall protect the other party's Confidential Information with at least reasonable care, for the term of the Agreement and three (3) years thereafter.

7. Limitation of Liability

7.1 Each party's aggregate liability is limited to the fees paid in the twelve months preceding the claim, except for breaches of confidentiality or data protection.

8. Termination

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8.1 For convenience. After the initial term, Customer may terminate for convenience with ninety (90) days' written notice.

8.2 For cause. Either party may terminate if the other party materially breaches this Agreement and fails to cure the breach within thirty (30) days of written notice.

8.3 Insolvency. Either party may terminate immediately if the other party becomes insolvent, makes an assignment for the benefit of creditors, or enters liquidation.

8.4 Effect of termination. If Customer terminates for Provider's uncured material breach, Provider will refund prepaid fees for the remainder of the term. Otherwise, fees paid are non-refundable.

8.5 Data return. For thirty (30) days after termination Customer may export its data; Provider will then delete Customer data within ninety (90) days.

9. General

9.1 This Agreement is governed by the laws of Ireland. Notices must be sent in writing to the addresses in the Order Form.

For Brightwave Labs Ltd.
Name / Title / Date

For Acme Corp
Name / Title / Date